BRENDAN NGWA NFORBI
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Plaintiff in Pro Per

October 16, 2026

VIA E-MAIL

E. Forrest Shryock, Jr., Esq.
Raenalene C. Musni, Esq.
Vogl Meredith Burke & Streza LLP
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Re: *Brendan Ngwa Nforbi v. Ross Stores, Inc., et al.*, Santa Clara County Superior Court No. 26CV501995 — Meet and confer regarding Defendants' Verified Answer served October 15, 2026 (Code Civ. Proc., §§ 430.41, 435.5)

Dear Mr. Shryock and Ms. Musni:

Thank you for the Verified Answer, discovery, and notice of jury fees served on October 15, 2026. I am writing under Code of Civil Procedure sections 430.41 and 435.5 to meet and confer about several issues with the answer before I decide whether to file a demurrer or motion to strike. My hope is that we can resolve these informally.

1. Affirmative defenses. An answer must plead the facts supporting each affirmative defense with the same specificity required of a complaint. (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 384; Code Civ. Proc., §§ 430.10, 430.20, subd. (a).) Defenses must also be separately stated and must refer to the causes of action they are intended to answer. (Code Civ. Proc., § 431.30, subd. (g).) Each of the sixteen affirmative defenses is stated in conclusory terms without supporting facts, and each is asserted against "All Defendants" without reference to a particular cause of action. Several also appear directed to negligence or premises-liability claims that are not pleaded here, such as accidental or unavoidable injury (Third), assumption of risk (Fifth), lack of notice of "conditions" (Eleventh), and several liability for non-economic damages (Fourteenth), while the Second, Twelfth, Fifteenth, and Sixteenth state pleading objections or a reservation of rights rather than defenses. I would ask that Defendants either withdraw these defenses or amend to plead the facts on which they rely, including the facts underlying the First Affirmative Defense (merchant's privilege).

2. Form of the denials. The answer is made "in accordance with" section 431.30, subdivision (d), which governs a general denial to an unverified complaint. Because the complaint is verified, denials must be made "positively or according to the information and belief of the defendant." (Code Civ. Proc., § 431.30, subd. (e).) A number of paragraphs are answered only with the

statement that Defendants "can neither admit nor deny" the allegations, without stating that the denial is based on a lack of information or belief. I would ask that those responses be restated in a form the statute permits.

3. Verification. Code of Civil Procedure section 446 provides that when a corporation is a party, the verification may be made by any officer of the corporation. The verification is signed by Rachel De la Cruz, who states that she is authorized to make the declaration on behalf of both Ross Stores, Inc. and Ross Dress for Less, Inc., but does not identify her title or position with either company. Could you please let me know Ms. De la Cruz's title, and the basis of her authority to verify for each entity?

4. The Doe defendants and the caption. The answer is made on behalf of "ROSS STORES, INC., ROSS DRESS FOR LESS, INC., DOE 1, and DOES 2 through 20," but the signature block identifies your firm as counsel for the two Ross entities only. Could you please confirm whether your firm represents DOE 1, the loss-prevention employee described in paragraph 12 of the complaint? If it does, I would ask that you provide her true name so that I may amend under Code of Civil Procedure section 474. If it does not, I would ask that the answer be amended to remove the fictitiously named defendants. Separately, the captions on the answer and discovery read "DOES 2 through 30." The complaint names DOES 2 through 20, and I would ask that future papers use the correct caption.

5. Attorney's fees. The prayer requests an award of attorney's fees to Defendants, but the answer does not identify any contractual or statutory basis for such an award. I would ask that this request be withdrawn, or that the basis be identified.

6. Preservation of evidence. The answer admits that surveillance cameras cover the entrance and captured the incident. Please confirm that Defendants have preserved, and will continue to preserve, all video from every camera covering the entrance, sales floor, register area, and exit of the Sunnyvale store (119 E. El Camino Real) for August 25, 2026, from 8:30 p.m. through 9:30 p.m., together with any incident reports, stop or loss-prevention logs, and related records for that evening.

Proposed resolution. I would propose that Defendants serve an amended answer addressing items 1 through 5 by Wednesday, October 21, 2026. Alternatively, I am glad to discuss these issues by phone on or before that date. Are there any times on October 19, 20, or 21 that would work well for you? If we are unable to resolve these issues, I intend to file a demurrer to the answer and/or a motion to strike under Code of Civil Procedure sections 430.20, 430.41, 435, and 435.5, or a declaration under section 430.41, subdivision (a)(2), as appropriate.

Thank you for your attention to this. I look forward to hearing from you.

Respectfully,



Brendan Ngwa Nforbi
Plaintiff in Pro Per